

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #03	CCRB Case #: 201411753	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/24/2014 7:12 PM	Location of Incident: in the Forest Promenade Shopping Center parking lot	18 Mo. SOL 12/24/2015	Precinct: 121		
Date/Time CV Reported Thu, 11/20/2014 1:14 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/20/2014 1:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Mullarkey	03595	949376	121 PCT
2. POM Michael Gagliardi	06808	950453	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Omar Elsayed	06763	950376	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Mullarkey	Discourtesy: PO Brian Mullarkey spoke rudely to § 87(2)(b)	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On June 24, 2014, at 7:12 p.m., § 87(2)(b) was allegedly involved in a motor vehicle accident in the Forest Promenade Shopping Center parking lot at 985 Richmond Avenue in Staten Island while waiting for his wife who was inside the store. PO Brian Mullarkey responded to the scene and requested that § 87(2)(b) provide his identification. PO Mullarkey claimed § 87(2)(b) did not remove his license from his wallet fast enough and proceeded to handcuff § 87(2)(b). PO Mullarkey then took § 87(2)(b)'s wallet from him and found a PBA card in it. PO Mullarkey told § 87(2)(b) "You can take that and stick it up your ass" (**Allegation A**). PO Mullarkey issued two summonses to § 87(2)(b) one for disorderly conduct and another for the unlicensed operation of a vehicle. Then, PO Mullarkey said to § 87(2)(b) "You know why I did this? You're a smart ass." When § 87(2)(b) asked PO Mullarkey why he was being issued a summons for being an unlicensed driver when he was not the driver of the vehicle, his wife was, PO Mullarkey replied, "Shut the fuck up or I'll take you to jail. You're lucky I gave you this ticket you'll go to court," (complaint encl. 4a-b, CCRB statement encl. 5a-f). § 87(2)(b) stated the summonses were dismissed in court. § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

This complaint was filed five months after the incident date by § 87(2)(b) because he wanted to file it after his court date for the summonses.

Mediation, Civil and Criminal Conviction Histories

- § 87(2)(b) rejected mediation § 87(2)(b).
 - On February 19, 2015, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the Comptroller will be forwarded upon receipt.
 - On February 20, 2015, requests to determine the disposition of summonses § 87(2)(b) and § 87(2)(b) were submitted; dispositions from the Department of Motor Vehicle will be forwarded upon receipt.
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).
- PO Brian Mullarkey has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Brian Gagliardi has been a member of the service for 3 years and there are no substantiated CCRB allegations against him (encl. 2b).

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Explanation of Subject Officer Identification

On the summonses provided by § 87(2)(b) PO Mullarkey is noted as the issuing officer. PO Mullarkey acknowledged his role in the incident. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Recommendations

- **Allegation A – PO Brian Mullarkey spoke rudely to** § 87(2)(b) § 87(2)(b) alleged PO Brian Mullarkey said to him, “You can take that and stick it up your ass... You didn’t move fast enough put your hands behind your back... You know why I did this. You’re a smartass... Shut the fuck up or I’ll take you to jail. You’re lucky I gave you this ticket, you’ll go to court.”

PO Mullarkey denied making any of the aforementioned statements to § 87(2)(b) and denied using the words “fuck” or “ass” used in any context towards § 87(2)(b) PO Gagliardi did not hear PO Mullarkey use any profanity towards § 87(2)(b)

§ 87(2)(g) [REDACTED]

[REDACTED] Consequently, it is recommended that **Allegation A** be closed as **unsubstantiated**.

- § 87(2)(g), § 87(4-b)

Pod: 3

Investigator: _____ Rebecca Ho 2/22/2015
Signature Print Date

Supervisor: _____

Title/Signature	Print	Date
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Reviewer: _____

Title/Signature	Print	Date
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Reviewer: _____

Title/Signature	Print	Date
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